

January 14, 2021



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 21166
(FIRST REVISION)

EXPIRATION DATE: 2021-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Federal Cartridge Company
Anoka, MN
2. PURPOSE AND LIMITATIONS:
 - a. This emergency special permit authorizes the transportation in commerce of six primer caps that were previously approved with lead styphnate as the primer explosive to be transported with a proprietary explosive formulation that replaces the lead styphnate. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.56(b) in that no person may offer a new explosive for transportation unless it has been approved, and § 172.301(c) in that the outside of each package authorized by a special permit must be plainly and durably marked with the special permit number, except as provided herein.

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5. BASIS: This emergency special permit is based on the application of Federal Cartridge Company dated January 4, 2021, submitted in accordance with § 107.117 and the determination it is necessary to prevent significant economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Primers, cap type	1.4S	UN0044	N/A

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: The following packaging method is assigned:

(1) Inner Packaging: Trays, plastic with recessed cavities and cardboard sleeve covers, each containing not more than one hundred (100) primers uniformly spaced apart.

(2) Intermediate Packaging: Boxes, cardboard, each containing not more than ten (10) inner packagings.

(3) Outer Packaging: UN 4G fiberboard box, each containing not more than five (5) intermediate packagings.

- b. The following primers may be transported with the proprietary explosive formulation that replaces the lead styphnate:

(1) Small pistol primer (#100, EX1990110264A, TN 2014110660), 34 mg max NEW.

(2) Small rifle primer (#205, EX1990110264E, TN 2014110662), 27 mg max NEW.

(3) Large pistol primer (#150, EX1985100177B, TN 2014110607), 42 mg max NEW.

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(4) Large rifle primer (#210, EX1990110264, TN 2014110658), 44 mg max NEW.

(5) Magnum rifle primer (#215, EX1987100234, TN 2014110649), 52 mg max NEW.

(6) Shotshell primer (#209A, EX1990110263A, TN 2014110655), 74 mg max NEW.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where packages are offered or reoffered for transportation.

b. This special permit may not be used after November 30, 2021.

c. Continued use of this special permit will not be authorized under the provisions of § 107.109(b) unless, prior to September 30, 2021, the grantee applies for an EX approval for each explosive in accordance with § 173.56. Upon receipt of the approval application(s), the prohibition against using the special permit after November 30, 2021 in paragraph 8.b. may be revised.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: Transportation must be by private carriage or contract carriage under exclusive use.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: RT/TG